

25STCV31737 25STCV31737

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25STCV31737 Kevin Ward v. Southern California Gas Company

Thursday, September 10, 2026

TENTATIVE ORDER GRANTING WITH LEAVE TO AMEND DEFENDANT SOUTHERN CALIFORNIA GAS COMPANY'S MOTION TO STRIKE PLAINTIFF'S REQUESTS FOR PUNITIVE DAMAGES [Res. No. -5018]

I. BACKGROUND

The first amended complaint alleges that Defendant, Southern California Gas Company (Defendant), negligently performed maintenance near Plaintiff's property in a manner that that caused soil erosion and flooding on Plaintiff's property. As alleged, Defendant was aware of the impact on Plaintiff's property from at least February 2023 and repeatedly claimed it intended to remedy the issue, but as of April 2026 no final design plan had been completed or confirmed. Plaintiff asserts claims for negligence, trespass, private nuisance, public nuisance, inverse condemnation, and declaratory and injunctive relief regarding the use of an easement.

II. ARGUMENTS

A. Motion filed May 26, 2026.

Plaintiff's complaint does not contain factual allegations demonstrating oppression, fraud, or malice, nor has he alleged facts sufficient to ascribe the necessary state of mind to a corporate defendant.

B. Opposition filed August 27, 2026.

Defendant made "institutional decisions" that disregard Plaintiff's property rights in a manner that amounts to malice or oppression.

C. Reply filed Septmber 1, 2026.

Plaintiff's opposition fails to identify facts in his pleading sufficient to demonstrate malice or oppression, and his "institutional decision" argument is unsupported by law.

III. LEGAL STANDARDS

"The court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." (Id. § 436 (a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (Id., § 431.10.) The court may also "[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Id. § 436 (b).) A motion to strike is also the proper procedure to attack a purportedly improper remedy such as unjustified punitive damages. (Venice Town Council, Inc. v. City of Los Angeles (1996) 47 Cal.App.4th 1547, 1561-1562.) A complaint including a request for punitive damages must also include allegations showing that the plaintiff is entitled to such an award. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

IV. DISCUSSION

The motion is granted. Plaintiff's complaint fails to identify decision-makers within Defendant's management structure that had advance knowledge sufficient to act with malice, etc., and he fails to plead facts showing Defendant ratified an employee's torts after the fact. To the extent Plaintiff alleges Defendant has dragged its feet after the alleged nuisance was brought to Defendant's attention, Plaintiff fails to allege specific facts showing malice, etc. sufficient for punitive damages.

V. CONCLUSION

Based on the foregoing, Defendant's motion is GRANTED WITH LEAVE TO AMEND. Plaintiff is ordered to file an amended pleading within 30 days or to stand on his operative pleading subject to this order.